

**CV-26-004906 FLORY, RYAN T vs HYUNDAI MOTOR AMERICA –
Defendant’s Motion to compel Binding Arbitration - DENIED, without
prejudice.**

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The instant case is a lemon law action filed after January 1, 2025. Therefore, it appears the action is governed by Code of Civil Procedure section 871.26. Section 871.26 requires, inter alia, that “[w]ithin 90 days after filing of the answer or other responsive pleading, all parties shall schedule a mediation to occur within 150 days after filing of the answer or other responsive pleading with a court-appointed or private mediator.” Except for initial disclosures and the initial depositions, “all other discovery shall be stayed until mediation is concluded.” (Code Civ. Proc., § 871.26.) The Court previously invited supplemental pleading on the application of the above-referenced statute, and Defendant’s arguments do not identify any authority requiring the Court to determine the issues presented in the instant motion before the statutory requirements are met. Therefore, the motion appears premature at this stage. Accordingly, in view of Defendant’s election to participate in the proceedings prescribed by Code Civ. Proc. § 871.20 et seq., the instant motion appears to be premature and is DENIED, without prejudice. Defendant may re-file its motion to compel after mediation is concluded. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

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